

****06.12.2021****

****Fine for GDPR Violation****

The National Supervisory Authority completed an investigation in November 2021 into the operator Telekom România Communications SA, following which it was found that the provisions of Article 5 paragraph (1) letters d) and f) and paragraph (2), as well as Article 17 of the General Data Protection Regulation (GDPR) were violated.

The operator Telekom România Communications S.A. was sanctioned as follows:

- a fine of 24,745 lei, equivalent to 5,000 euros, for violating the provisions of Article 5 paragraph (1) letters d) and f) and paragraph (2) of the GDPR;
- a fine of 4,949 lei, equivalent to 1,000 euros, for violating the provisions of Article 17 of the GDPR.

The investigation was initiated following a complaint made by a data subject who reported receiving, from the operator Telekom Romania Communications S.A., invoices and notification messages regarding debts accumulated by another person, a subscriber of the same company, at their email address.

During the investigation, the National Supervisory Authority found that the operator had incorrectly collected and processed certain inaccurate personal data, which also led to the illegal disclosure of some personal data to another natural person, constituting a violation of the principles of personal data processing established by Article 5 paragraph (1) letters d) and f) and paragraph (2) of the General Data Protection Regulation.

Additionally, during the investigation, it was found that the operator had not adopted the necessary measures to comply with the deletion request made under Article 17 of the General Data Protection Regulation.

Furthermore, the operator was also subjected to the following corrective measures:

- to ensure compliance with the GDPR in the operations of collecting and further processing personal data, by implementing effective methods to ensure data accuracy, including in the case of data collection, such as email addresses, which allow remote communication of personal data. In this regard, appropriate and effective security measures were ordered to be implemented, both from a technical perspective (such as: automated collection of certain data, securing the transmission of documents and messages through encryption/password protection), and from an organizational perspective, through regular training of individuals processing data under the authority of the operator;
- to ensure compliance with the GDPR in the resolution of requests for deletion or rectification of personal data, by adopting appropriate technical and organizational measures that guarantee the effective and correct implementation of these operations in the database(s) used by the operator and the persons authorized by it, as well as the proper training of individuals processing data under their authority.

In this context, it is noted that by Recital (65) of the General Data Protection Regulation, it was stated that "A data subject should have the right to rectification of personal data concerning them and the 'right to be forgotten', in cases where the retention of such data violates this regulation or Union law or the national law under which the operator falls under (...)."

****Legal and Communication Department****

****N.S.A.P.D.C.P.****